CYBER-SECURITIES PURCHASE AGREEMENT
(simultaneous sign/close)
V2

This Cyber-Securities Purchase Agreement (this "***Agreement***") is being entered into as of the time of completion of the Adoption Procedures by an entity selling and issuing a certain security or certain securities of such entity as set forth on Exhibit A (the "***Security(ies)***") pursuant to this Agreement (the "***Company***") and an individual or entity purchasing the Security(ies) pursuant to this Agreement (the "***Investor***" and together with the Company, the "***Parties***" and each a "***Party***") with the intention of completing a potential Security(ies) Purchase wherein the Investor will purchase the Security(ies) from the Company for an amount of U.S. dollar value (the "***Purchase Amount***") paid for by the Investor in Blockchain Tokens, with the Security(ies) being represented by one or more Certificate Tokens to be issued to the Investor on the Designated Blockchain System.

The Parties wish to enter into this Agreement via specific Blockchain Systems and to commit their respective Blockchain Tokens to the control of a particular Smart Contract that will serve as a non-custodial escrow enabling automated entry into this Agreement and consummation of the Security(ies) Purchase.

Certain capitalized terms used in this Agreement are defined in Section 5.

The Agreement Template for this Agreement, and certain of the Deal Management Technologies assisting with the execution and delivery of this Agreement and the consummation of the Security(ies) Purchase, were authored and deployed by MetaLeX. By entering into or using this Agreement or any of the Deal Management Technologies, you also acknowledge and agree to the MetaLeX Terms, License and Disclaimers set forth on Exhibit D. Additionally if you are using the MetaLeX Web Application in connection with the foregoing, you agree to the MetaLeX Web App Terms of Service.

1. **Security(ies) Purchase**.

1.1 Security(ies) Purchase Terms. The Company hereby sells and issues the Security(ies) (represented as one or more Certificate Tokens on the Designated Blockchain System) to the Investor, and the Investor hereby purchases the Security(ies) by paying the Purchase Amount (represented as certain Blockchain Tokens on the Designated Blockchain System (the "***Purchase Amount Tokens***")) to the Company (such sale, issuance, and purchase, the "***Security(ies) Purchase***").

1.2 Adoption Procedures. The Parties shall mutually execute and deliver this Agreement and consummate the Security(ies) Purchase by following the Adoption Procedures set forth in Section 5.1. Completion of the Adoption Procedures by the Parties will cause the details of this Agreement and the Security(ies) Purchase to be recorded on the Designated Blockchain System and will deploy certain Smart Contracts on the Designated Blockchain System to assist with the performance of the Parties' respective obligations under this Agreement, including the Deal Manager Smart Contract or Round Manager Smart Contract that will escrow the Parties' respective Blockchain Tokens (i.e., the Purchase Amount Tokens and the Certificate Token(s)), hold one or more of the Parties' signatures in escrow and apply such signature(s) and effectuate the Security(ies) Purchase upon satisfaction of applicable conditions.

2. **Representations/Warranties**.

Each Party hereby represents and warrants, to and for the benefit of the other Party and MetaLeX (as third-party beneficiary of this Section 2) as follows in this Section 2:

2.1 Security(ies) Representations/Warranties. Each Party hereby makes the representations and warranties set forth in the Security(ies) that are applicable to such Party (based on whether such Party is the Investor or the Company), as if set forth herein.

2.2 Authorization.

(a) If such Party is an entity, all actions necessary to be taken by such Party's directors, managers, officers, members, stockholders, shareholders, debtholders, other holders of equity and/or debt securities, and other persons with a direct or indirect authority over or economic, beneficial or voting interest in such Party in order to authorize such Party to enter into, and perform such Party's obligations under, this Agreement have been taken and such Party has full power and authority to enter into this Agreement.

(b) If such Party is a natural person, such Party is fully authorized to enter into this Agreement on such Party's own behalf, has the legal capacity to do so, is of the legal age of majority in the jurisdiction of their primary residence, and is of sound mind.

2.3 Enforceability. This Agreement, when executed and delivered by such Party and the other Party(ies) hereto, shall constitute a valid and legally binding obligation of such Party, enforceable against such Party in accordance with its terms, except as limited by: (a) applicable bankruptcy, insolvency, reorganization, moratorium, fraudulent conveyance, or other laws of general application relating to or affecting the enforcement of creditors' rights generally or (b) laws relating to the availability of specific performance, injunctive relief, or other equitable remedies.

2.4 Compliance with Other Agreements Etc. The execution, delivery and performance of this Agreement and the consummation of the transactions contemplated by this Agreement by such Party will not result in a breach or violation of or default under, or otherwise be in conflict with, any instrument, judgment, order, writ, decree, contract or agreement to which such Party is a Party or by which such Party or any of the Blockchain Tokens to be delivered by such Party pursuant to this Agreement are bound.

2.5 Local Law Compliance. Such Party hereby represents that such Party's execution, delivery and performance of this Agreement complies in all material respects with all laws applicable to such Party.

2.6 Private Key Ownership. Based on the knowledge of such Party, such Party is the sole and exclusive holder, knower and owner of the private key(s) controlling all blockchain addresses of such Party referred to in or necessary for the performance of this Agreement and of the "seed(s)" used to generate the pairing of such private key(s) with such address(es).

2.7 AML Compliance. Based on the knowledge of such Party, none of the Blockchain Tokens to be utilized by such Party in connection with this Agreement are derived from or related to any unlawful activities, including money laundering, terrorist financing or proliferation financing. Based on the knowledge of such Party, neither such Party nor any person for whom such Party is acting as agent or nominee in connection with the Security(ies) Purchase is the subject of (or is subject to) sanctions administered or enforced by any applicable intergovernmental organization or governmental authority, or is organized or residing in a country or territory that is the subject of country-wide or territory-wide sanctions administered or enforced by any applicable intergovernmental organization or governmental authority.

2.8 Purchase Amount Tokens. The Investor represents and warrants to the Company that the Purchase Amount Tokens are solely owned by and constitute the property of the Investor, free and clear of all liens, claims, encumbrances, and transfer restrictions.

2.9 No Other Representations. In entering into and performing its obligations under this Agreement, such Party is not relying on any statement, representation or warranty, or omission of any statement, representation or warranty (whether express or implied, or arising by operation of any law, principle of equity or statute, or otherwise), other than the representations and warranties of the other Party expressly set forth in this Section 2. Except to the extent solely based on a breach of the representations and warranties of the other Party expressly set forth in this Section 2 made within the applicable statute of limitations, the other Party will have no liability or other obligation to such Party resulting from any statement, information, representation or warranty, or omission of any statement, information, representation or warranty (whether express or implied, or arising by operation of any law, principle of equity or statute, or otherwise) given to or made to such Party in connection with or relating directly or indirectly to the subject matter of this Agreement.

3. Agreements Regarding Use of the Deal Management Technologies

3.1 Agreement to Use and Presumption of Correctness of Deal Management Technologies. By entering into this Agreement, the Parties are agreeing to automate certain aspects of the execution, delivery, and performance of this Agreement and the Security(ies) by means of the Blockchain Systems, Blockchain Tokens, and Smart Contracts referred to in this Agreement (the "***Deal Management Technologies***"). To best secure the benefits of the Deal Management Technologies (including increased efficiency, reduced counterparty performance risk, transparency, reduction of transaction costs, and finality), the Parties hereby agree that in any Dispute, the results of operation of the Deal Management Technologies shall be presumed to be consistent with this Agreement and the Security(ies), to reflect the understanding and intentions of the Parties, and to be final, binding and determinative on the Parties, except to the extent materially adversely affected by any of the following events occurring or being reasonably expected to occur (each, a "***Material Adverse Exception Event***"):

(a) a Consensus Attack adversely affecting the results or operations of such Designated Smart Contract;

(b) a change to the consensus rules of the Designated Blockchain System or Ethereum that could reasonably be expected to adversely affect the results or operations of such Designated Smart Contract or could reasonably be expected to result in a "contentious hard fork" (as such term is commonly understood and used by software engineers expert in developing blockchain protocol software clients) of the Designated Blockchain System or Ethereum;

(c) a "reorganization" (as such term is commonly understood and used by software engineers expert in developing blockchain protocol software clients) of the Designated Blockchain System or Ethereum that could reasonably be expected to adversely affect the results or operations of such Designated Smart Contract;

(d) such Designated Smart Contract having become inoperable, inaccessible or unusable, or any Blockchain Tokens under the control of such Designated Smart Contract having become permanently "frozen," "stuck" or non-transferable (where such a condition shall be deemed "permanent" if such condition would persist except in the event of a change to the consensus rules of the Designated Blockchain System or Ethereum that is not reasonably expected to occur in the near future), including as the result of any code library or repository incorporated by reference into such Designated Smart Contract or any other smart contract or oracle on which such Designated Smart Contract depends in whole or in part having become inoperable, inaccessible or unusable or having itself suffered a Material Adverse Exception Event, *mutatis mutandis*;

(e) a material and adverse effect on the use, functionality or performance of such Designated Smart Contract as the result of a clear and manifest bug, defect or error in such Designated Smart Contract, as evidenced by the failure of such Designated Smart Contract to function in accordance with provisions of this Agreement expressly pertaining to such Designated Smart Contract or by documentation or other evidence prepared contemporaneously with the Designated Smart Contract source code demonstrating that the intended functioning of such Designated Smart Contract differs materially from the actual functioning as a result of such bug, defect or error;

(f) a person other than an intended counterparty participating in the Adoption Procedures or obtaining the Purchase Amount Tokens or the Certificate Token(s) in a manner that enables them to participate in the transactions contemplated by this Agreement, including by *misappropriating* the secret referred to in Section 5.2(a)(iii), impersonating an intended counterparty or otherwise providing false information during the Adoption Procedures, or depositing Blockchain Tokens into (or under the control of) the Deal Manager Smart Contract or Round Manager Smart Contract ahead of an intended counterparty;

(g) such Designated Smart Contract or any of the Blockchain Tokens controlled by such Designated Smart Contract becomes subject to an Order or applicable Legal Requirement that permanently or temporarily prohibits or restrains such Designated Smart Contract (or that, if such Designated Smart Contract were a person, would prohibit or restrain such *Designated* Smart Contract) from executing any function or operation it would otherwise reasonably be expected to execute or permanently or temporarily orders or directs such Designated Smart Contract (or that, if such Designated Smart Contract were a person, would order or direct such Designated Smart Contract) to take an action or bring about a circumstance it would otherwise not reasonably be expected to take or bring about; or

(h) either Party becomes subject to an Order or applicable Legal Requirement requiring such Party to cause such Designated Smart Contract to take or refrain from taking any action or requiring such Party to take or refrain from taking any action with respect to any of the Blockchain Tokens of such Party that are subject to this Agreement, in each case, which it is not within the power of such Party to comply with in light of the nature of the Designated Smart *Contracts*; *provided, however,* that to trigger this clause '(g)' pursuant to an applicable Legal Requirement, a Party must obtain, and share with the other Party, from a reputable law firm of 15 lawyers or more in the jurisdiction of the relevant Legal Requirement a written legal opinion to the effect that both: (i) such Legal Requirement applies; and (ii) such Legal Requirement requires the specified action or inaction.

3.2 Handling of Material Adverse Exception Events.

(a) *Exception Notice.* If either Party becomes aware that there is a Material Adverse Exception Event, such Party (the "***Sending Party***") shall deliver or cause to be delivered to the other Party (the "***Receiving Party***") a written notice (an "***Exception Notice***"):

(i) certifying that the Sending Party believes in good faith that there is or has been a

Material Adverse Exception Event;

(ii) describing in reasonable detail the events, facts, circumstances and reasons forming the basis of such belief;

(iii) if so desired by the Sending Party, describing in reasonable detail a proposal by the Sending Party of the actions to be taken, the agreements to be entered into, and the remedies to be sought by the Parties in response to the Material Adverse Exception Event an "***Exception Handling Proposal***"; and

(iv) including copies of any written evidence or other material written information, and summaries of any other evidence, relevant to, and material for the consideration of, the Material Adverse Exception Event and the other matters referred to in the Exception Notice.

(b) *Exception Standstill*. During the period starting on the date of delivery of an Exception Notice and ending at the time an Exception Handling Determination is made (the "***Standstill Period***"), the Parties shall: (i) safeguard, set aside and hold in trust for the Parties any Blockchain Tokens that may have been received as a result of the Material Adverse Exception Event as described in the Exception Notice; and (ii) refrain from using the Deal Management Technologies in a manner that would reasonably be expected to be affected by, or would further the effects of or fail to mitigate the damages caused by, the Material Adverse Exception Event as described in the Exception Notice.

(c) *Determination of Exception Handling*. The term "***Exception Handling Determination***" means a determination by either: (i) mutual written consent signed by the Parties; or (ii) the final resolution of a Dispute in accordance with Section 4.2, as to: (A) the existence or non-existence of a Material Adverse Exception Event and (B) if a Material Adverse Exception Event has been determined to exist, the actions to be taken, the agreements to be entered into, and the remedies to be sought in response thereto. Each of the Parties shall act in accordance with the Exception Handling Determination. If any amendment to this Agreement is required by the Exception Handling Determination, the Parties shall promptly engage legal counsel to draft such amendment for execution by the Parties.

3.3 Key Management. Each Party is responsible for maintaining access to and securing against access by third parties any 'wallet' or private keys to be used by such Party in connection with this Agreement and the transactions contemplated thereby, including the use of such private keys to sign this Agreement and to execute transactions on the applicable Deal Management Technologies as may be required under this Agreement. Each Party assumes all risk of loss of access to or theft, misappropriation, unauthorized access or other exploitation of the foregoing by third parties. Each Party hereby acknowledges and accepts that if the foregoing occurs, the Security(ies) Purchase may nevertheless be executed and such Party may nevertheless receive Blockchain Tokens at the address controlled by such private keys and be unable to transact in such Blockchain Tokens or may have such Blockchain Tokens misappropriated, or may otherwise suffer damages in connection with this Agreement and the transactions contemplated hereby, and each Party hereby assumes all such risks and waives and releases all rights and remedies against the other Party, and MetaLeX, that may otherwise exist in connection with such losses.

4. Miscellaneous

4.1 Governing Law**.** This Agreement shall be governed by and construed under the internal laws of the Governing Jurisdiction, regardless of the laws that might otherwise govern under applicable principles of conflicts of laws.

4.2 Dispute Resolution. All Disputes shall be resolved in accordance with the Dispute Resolution Method.

4.3 Notices. All notices and other communications required or permitted pursuant to this Agreement shall be in writing and shall be deemed effectively given upon the earlier of: (i) personal delivery to the Party to be notified; or (ii) on the third business day after being sent, if sent in accordance with the `contactDetails` (set during the Adoption Procedures) of the Party to be notified and the sending party preserves clear and convincing evidence (such as a certified mail receipts, if the `contactDetails` included a physical mailing address that was used for the notice, or such as timestamped data records if the `contactDetails` included an email or digital messaging address that was used for the notice).

4.4 Amendment; Waiver. This Agreement may be amended and provisions may be waived (either generally or in a particular instance and either retroactively or prospectively), only with the written consent of both of the Parties, including as stated in Section 3.2(c) herein. No waiver of any provision hereunder shall be deemed a waiver of any subsequent breach or default of the same or any other provision of this Agreement, unless so stated in writing by the waiving Party.

4.5 Severability. Any term or provision of this Agreement that is found invalid or unenforceable in any situation in any jurisdiction shall not affect the validity or enforceability of the remaining terms and provisions hereof or the validity or enforceability of the offending term or provision in any other situation or in any other jurisdiction. If a final judgment of a court of competent jurisdiction declares that any term or provision hereof is invalid or unenforceable, the parties hereto agree that the court making such determination shall have the power to limit such term or provision, to delete specific words or phrases, or to replace any invalid or unenforceable term or provision with a term or provision that is valid and enforceable and that comes closest to expressing the intention of the invalid or unenforceable term or provision, and this Agreement shall be enforceable as so modified. In the event such court does not exercise the power granted to it in the prior sentence, the parties hereto agree to replace such invalid or unenforceable term or provision with a valid and enforceable term or provision that will achieve, to the extent possible, the economic, business and other purposes of such invalid or unenforceable term or provision.

4.6 Entire Agreement. This Agreement, together with the other written agreements expressly referred to herein (including the Security(ies)) constitutes the entire agreement and understanding of the parties with respect to the subject matter hereof, and supersedes any and all prior negotiations, correspondence, representations, warranties, agreements, understandings, duties or obligations between or involving the parties with respect to the subject matter hereof.

4.7 Further Assurances. At any time or from time to time after the Security(ies) Purchase, the parties shall cooperate with one another, and, at the other's request, each party shall execute and deliver any further instruments or documents and take all such further actions as such other Party may reasonably request in order to carry out the intent of this Agreement.

4.8 Delays or Omissions. No delay or omission to exercise any right, power, or remedy accruing to any party under this Agreement, upon any breach or default of any other party under this Agreement, shall impair any such right, power, or remedy of such non-breaching or non-defaulting party, nor shall it be construed to be a waiver of or acquiescence to any such breach or default, or to any similar breach or default thereafter occurring, nor shall any waiver of any single breach or default be deemed a waiver of any other breach or default theretofore or thereafter occurring. Any waiver, permit, consent or approval of any kind or character on the part of any party of any breach or default under this Agreement, or any waiver on the part of any party of any provisions or conditions of this Agreement, must be in writing and shall be effective only to the extent specifically set forth in such writing. All remedies, whether under this Agreement or by law or otherwise afforded to any party, shall be cumulative and not alternative.

4.9 Signature; Counterparts. This Agreement may be executed in any number of counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Counterparts may be delivered via facsimile, electronic mail or other transmission method, including Blockchain Systems records of private key signatures, and any counterpart so delivered shall be deemed to have been duly and validly delivered and be valid and effective for all purposes, including that the parties shall be entitled to rely on any such electronic signature for the purposes of any electronic signature laws of the Governing Jurisdiction.

4.10 Successors and Assigns. The terms and conditions of this Agreement shall inure to the benefit of and be binding upon the respective successors and assigns of the parties hereto and express beneficiaries hereof. MetaLeX shall be a third-party beneficiary of the provisions of this Agreement that relate to MetaLeX, including the representations and warranties set forth in Section 2 and the provisions of Section3 and Exhibit D.

4.11 Rules of Construction.

(a) *Gender; Etc.* For purposes of this Agreement, whenever the context requires: the singular number shall include the plural, and vice versa; the masculine gender shall include the feminine and neuter genders; the feminine gender shall include the masculine and neuter genders; and the neuter gender shall include the masculine and feminine genders.

(b) *Ambiguities.* The Parties hereto agree that any rule of construction to the effect that ambiguities are to be resolved against the drafting Party shall not be applied in the construction or interpretation of this Agreement.

(c) *No Limitation*. As used in this Agreement, the words "include," "including," "such as" and variations thereof, shall not be deemed to be terms of limitation, but rather shall be deemed to be followed by the words "without limitation." The word "or" shall mean the 'non-exclusive' "or" (e.g., if *x* and *y* are propositions, then "*x or y is true*" will be true where x is true but y is false, y is true but x is false, and both x and y are true).

(d) *References*. Except as otherwise indicated, all references in this Agreement to "Sections," "Schedules" and "Exhibits" are intended to refer to Sections of this Agreement and Schedules and Exhibits to this Agreement.

(e) *Hereof.* The terms "hereof," "herein," "hereunder," "hereby" and "herewith" and words of similar import will, unless otherwise stated, be construed to refer to this Agreement as a whole and not to any particular provision of this Agreement.

(f) *Captions/Headings*. The captions, headings and similar labels contained in this Agreement are for convenience of reference only, shall not be deemed to be a part of this Agreement and shall not be referred to in connection with the construction or interpretation of this Agreement.

(g) *person*. The term "person" refers to any natural born or legal person, entity, governmental body or incorporated or unincorporated association, partnership or joint venture.

(h) *Blockchain Finalization*. Wherever this Agreement calls for a certain action to be completed on the Designated Blockchain System, such action must be "Finalized" to have the intended legal effect hereunder. ***"Finalization***" or "***Finalized***" means, with respect to a transaction, operation or state on a Designated Blockchain System, that: (a) such transaction, operation or state (or the results or record thereof, which may include state roots or calldata committed to Ethereum or another "layer-1/L1" Blockchain System by a "layer-2/L2" Blockchain System) has been recorded in a block of the Designated Blockchain System (and, if such Designated Blockchain System is a "layer-2/L2" Blockchain System, has additionally been committed to Ethereum or another applicable "layer-1/L1" Blockchain System); and (b) with respect to blocks on Ethereum, such block has been fully finalized in accordance with the checkpoint finalization algorithm of Ethereum.

(i) *Smart Contract Deposits*. References to depositing assets into or with or inside a Smart Contract or assets being held by a Smart Contract refer to the Parties directly or indirectly effecting transactions on a Blockchain System such that the Smart Contract in question has certain controls over the relevant asset (e.g. that transfers of such assets can then be effected by calling certain functions on such Smart Contract).

(j) *Decimal Precision and Truncation*. All token values in the smart contracts referred to herein are represented as uint256 integers with 18-decimal-place precision (10^{18}). Percentages, multipliers and rates are stored with 4-decimal-place precision (10^{4}). Precision of mathematic operations will be normalized to 18 decimals of precisions (10^{18}) and any operations exceeding that will be truncated.

5. Defined Terms

5.1 "***Adoption Procedures***" means that this Agreement has been entered into by or on behalf of the Parties, as follows:

(a) the Company, by calling or causing to be called the the `proposeAndSignDeal()` or `proposeDeal()` function of the Deal Manager Smart Contract or the `allocate()` function of the Round Manager Smart Contract, in each case, with reference to the Agreement Template, has created or caused to be created a data structure representing and setting forth the details of this Agreement (the "***Registered Deal Data***") in the Agreement Registry Smart Contract, and the Agreement Registry Smart Contract has stored a unique agreementId associated with that data structure (such uniquely identifiable data structure, the "***Registered Deal***");

(b) the Company has electronically signed this Agreement with the Company's private key by calling or causing to be called the `signContractWithEscrow()` function of the Round Manager Smart Contract, in each case, with reference to the Agreement Template, Registered Deal, and Registered Deal Data;

(c) the Investor, by calling or causing to be called the `signAndFinalizeDeal()` function of the Deal Manager Smart Contract or the `submitEOI()` function of the Round Manager Smart Contract and has added or cause to be added to the Registered Deal Data any necessary details regarding the Investor that are required by the Agreement Template that were not previously supplied by the Company; and

(d) the Investor has electronically signed this Agreement with the Investor's private key by calling or causing to be called the `signContractFor()` function of the Deal Manager Smart Contract or the Round Manager Smart Contract with reference to the Agreement Template, Registered Deal, and Registered Deal Data.

5.2 The "***Registered Deal Data***" means the specific data used to parameterize the Agreement Template and must include at least the following information:

(a) as the `globalValues` variable of the Registered Deal, a data structure setting forth the following data, which shall correspond to the data fields specified in the `globalFields` variable of the Agreement Template:

(i) the amount of U.S. dollar equivalents (e.g., units of USDC or another stablecoin) being paid to purchase each Security;

(ii) the amount of U.S. dollars intended to serve as the valuation of the Company for determining conversion of the Security(ies);

(iii) optionally, a secret `bytes32` variable set by the Company in order to restrict who may sign this Agreement as an Investor;

(iv) the name of the jurisdiction whose law will govern this Agreement (the "***Governing Jurisdiction***"), as the `governingLaw` string variable;

(v) the string "`bindingArbitration`," the string "`courtResolution`" or another string specifying an alternative dispute resolution, as the `disputeResolutionMethod` string variable;

(b) as the `partyValues` variables of the Registered Deal, data structures setting forth the following data about the Parties, which shall correspond to the applicable data fields specified in the `partyFields` variable of the Agreement Template:

(i) a blockchain address of the Company (the "***Company Blockchain Address***"), the legal name of the Company, details of where the Company can be contacted for purposes of giving notices under this Agreement ,the entity type of the Company, the jurisdiction of incorporation of the Company, and

(ii) a blockchain address of the Investor (the "***Investor Blockchain Address***"), the legal name of the Investor, details of where the Investor can be contacted for purposes of giving notices under this Agreement, and, if the Investor is an entity, the entity type of the Investor and the jurisdiction of incorporation of the Investor;

(iii) the `contactDetails` setting forth electronic or mailing addresses for the Company and the Investor for purposes of receiving legal notices.

(c) the Certificate Token(s) and the Purchase Amount Tokens have both been deposited into or under the control of the Deal Managaer Smart Contract or the Round Manager Smart Contract, as applicable.

5.3 "***Agreement Registry Smart Contract***" means the official MetaLeX deployment of `CyberAgreementRegistry.sol` on the Designated Blockchain System, being the Smart Contract at address `0xa9E808B8eCBB60Bb19abF026B5b863215BC4c134` on the Designated Blockchain System.

5.4 "***Agreement Template***" means a data structure stored in the Agreement Registry Smart Contract setting forth (as its `legalContractUri` string variable) an IPFS URI of this Agreement (the "***Legal Template***"), a template ID for unique identification of the Legal Template, and (as its `globalFields` variable and `partyFields` variables) a specification of the types of data (such as party names) needed to fill in the details of the Legal Template in order to create a legal agreement between particular parties.

5.5 "***Blockchain***" means a distributed data structure consisting of hashlinked sets ('blocks') of transactions that is directly or indirectly produced, maintained and/or secured by the automated consensus of a network of independent nodes operating a byzantine-fault-tolerant protocol.

5.6 "***Blockchain System***" means the combination of:

(a) a Blockchain; and

(b) a network of one or more devices operating software clients or software applications that jointly or individually store, validate, process transactions with respect to, update, resolve forks with respect to or otherwise maintain, validate, read *from*, store data with respect to, create public proofs with respect to, or write to such Blockchain.

5.7 "***Blockchain Tokens***" means any virtual currency, token, or other unit of account or medium of exchange that is implemented exclusively or primarily on a Blockchain System, regardless of whether transferable, non-transferable, fungible or non-fungible.

5.8 "***Consensus Attack***" means an attack that: (A) is undertaken by or on behalf of a person or group that controls a preponderance of the means of block production on the Designated Blockchain System or Ethereum; and (B) has the actual or intended effect of: (1) reversing any transaction made to or by any Designated Smart Contract, including any "double spend" attack having or intended to have such effect; or (2) preventing inclusion in blocks or Confirmation of any transaction made to or by any Designated Smart Contract, including any "censorship attack," "transaction withholding attack" or "block withholding attack" having or intended to have such effect.

5.9 "***Deal Manager Smart Contract***" means the instance of `DealManager.sol` deployed by or on behalf of the Company.

5.10 "***Designated Blockchain System***" means the Blockchain System selected by the Parties for executing and performing this Agreement and the Security(ies) Purchase. Such Blockchain System shall include the relevant Deal Manager Smart Contract or Round Manager Smart Contract selected by the Parties for this Agreement and the Security(ies) Purchase, and may be Ethereum or an Ethereum "layer-2"/"L2" such as Arbitrum, Base, Optimism, or ZKsync.

5.11 "***Designated Smart Contracts***" means the Deal Manager Smart Contract or Round Manager Smart Contract, Agreement Registry Smart Contract and any other Smart Contracts constituting an instance of all or any portion of the MetaLeX Protocol that are used in connection with the execution, delivery, or performance of this Agreement or the transactions contemplated by this Agreement.

5.12 "***Dispute***" means any dispute, suit, action or other Legal Proceeding arising out of or based upon this Agreement or the matters contemplated by this Agreement.

5.13 "***Dispute Resolution Method***" means:

(a) if the value of the `disputeResolutionMethod` variable referred to in Section 5.2(a)(v) is "`bindingArbitration`", the dispute resolution procedures set forth on Exhibit B;

(b) if the value of the `disputeResolutionMethod` variable referred to in Section 5.2(a)(v) is "`courtResolution`", the dispute resolution procedures set forth on Exhibit C; and

(c) if the value of the `disputeResolutionMethod` variable referred to in Section 5.2(a)(v) sets forth or refers to another dispute resolution procedure, such other dispute resolution procedure.

5.14 "***Ethereum***" means, at any time, the canonical Blockchain System of the Ethereum Mainnet 'mainnet', as recognized by at least a majority of the validators running correct versions of the go-Ethereum client ('geth') then being operated in good faith in the ordinary course of the network.

5.15 "***Legal Proceeding***" means any private or governmental action, suit, litigation, arbitration, claim, proceeding (including any civil, criminal, administrative, investigative or appellate proceeding), hearing, inquiry, audit, examination or investigation commenced, brought, conducted or heard by or before, or otherwise involving, any court or other governmental entity or any arbitrator or arbitration panel.

5.16 "***Legal Requirement***" means any federal, state, local, municipal, foreign or other law, statute, legislation, constitution, principle of common law, resolution, ordinance, code, edict, decree, proclamation, treaty, convention, rule, regulation, ruling, directive, pronouncement, requirement, specification, determination, decision, opinion or interpretation issued, enacted, adopted, passed, approved, promulgated, made, implemented or otherwise put into effect by or under the authority of any governmental body.

5.17 "***MetaLeX***" means MetaLeX Labs, Inc., a Delaware corporation.

5.18 "***MetaLeX Protocol***" means the Smart Contract and Blockchain Systems source code at https://github.com/MetaLex-Tech and its repositories.

5.19 "***MetaLeX Web App***" means https://www.metalex.tech/, https://www.app.metalex.tech/ and all subpages.

5.20 "***MetaLeX Web App Terms of Service***" means the most current version of the terms of service of the MetaLeX Web App, typically published at https://github.com/MetaLex-Tech/publicDocs/tree/main/MetaLeX%20Legal%20Docs as well as on the MetaLeX Web App.

5.21 "***Order***" means any restraining order, preliminary or permanent injunction, stay or other order, writ, injunction, judgment or decree that either: (a) is issued by a court of competent jurisdiction, or (b) arises by operation of applicable law as if issued by a court of competent jurisdiction, including, in the case of clause ‘(b)’ an automatic stay imposed by applicable law upon the filing of a petition for bankruptcy.

5.22 “***Parties***” means the Company and the Investor.

5.23 “***Round Manager Smart Contract***” means the instance of `RoundManager.sol` deployed by or on behalf of the Company.

5.24 “***Security(ies) Purchase***” has the meaning set forth in Section 1.1.

5.25 “***Smart Contract***” means any executable bytecode (commonly known as ‘smart contracts’) deployed to a Blockchain System for operation by node operators running validators, sequencers or similar network operators on such Blockchain System.